



Delaware County Commissioners Meeting February 22nd 2022

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=B20Yo4GT-ww
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Delaware County Commissioners Meeting Report

Meeting Date: February 22, 2022

Report Type: Structured Municipal Meeting Summary

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting of the Delaware County Commissioners was called to order on Tuesday, February 22, 2022, by the presiding officer.
- **Attendance:**
 - **Present:** Mr. King, Mr. Henry, Ms. Reagan, and Mr. Brook.
 - **Absent:** None noted.
 - **Presiding Officer:** Not explicitly designated by a single title, but managed collectively by the board leadership.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.

- **Approval of Minutes:** The board considered the minutes from the previous meeting on February 7.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Henry: Yes, Mr. King: Yes, Ms. Reagan: Yes).
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3. Substantive Business & Board Action

- **00:00:46 Board Appointments: Community Corrections Board**
 - **Sponsor / Presenter:** Jane (Delaware County Community Corrections).
 - **Deliberation Summary:** Jane announced that juvenile court probation head Jeff Hansard is stepping down from the Community Corrections Board, passing the torch to the new supervisor, Holly Parton. Jeff Hansard will transition to the JDAI (Juvenile Detention Alternatives Initiative).
 - **Action & Vote Disposition:** Motion to appoint Holly Parton approved by Roll Call Vote (Mr. Henry: Yes, Mr. King: Yes, Ms. Reagan: Yes).
- **00:02:08 Administrative Request: TREX System Debt Clearinghouse**
 - **Sponsor / Presenter:** County staff / Commissioners.
 - **Deliberation Summary:** Staff requested permission to explore the "TREX" system, a statewide debt clearinghouse for government agencies. The system flags taxpayers who owe government fees, court costs, fines, or probation user fees when they file tax returns, allowing funds to be collected directly.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).
- **00:04:49 9-1-1 Dispatch Center Upgrade & Renovation Proposal**
 - **Sponsor / Presenter:** Fred Cummins (9-1-1 Director).
 - **Deliberation Summary:** Cummins presented a proposal for a console upgrade, flooring replacement, radio updates, and office renovations (building two new offices for the supervisor and CAD coordinator). Requested a not-to-exceed figure of \$292,500 from previously approved ARPA funds and up to \$100,000 from the 9-1-1 fund.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).
- **00:14:32 Neighborhood Park Funding Request: Country Village / Creekwood**
 - **Sponsor / Presenter:** Mitch Isaacs (representing Country Village Creekwood Neighborhood Association).
 - **Deliberation Summary:** Isaacs requested financial assistance to replace a 50-year-old neighborhood park's playground and resurface tennis courts (total estimated cost: \$90,000). The neighborhood raised \$25,000, received a \$20,000 family donation, and the association added \$5,000, leaving a funding gap. Commissioners noted the park is widely used by the public.

- **Action & Vote Disposition:** Motion to allocate \$40,000 to the project approved by Roll Call Vote (Mr. Henry: Yes, Mr. King: Yes, Ms. Reagan: Yes).
- **00:17:13 Access Easement Request: Don Hazlett Cell Tower**
 - **Sponsor / Presenter:** Don Hazlett.
 - **Deliberation Summary:** Hazlett stated a cellular company wants to build a tower on his property, but an access issue exists due to a small strip of land owned by the commissioners. The board noted the need for legal review by the county attorney and Marta Moody.
 - **Action & Vote Disposition:** Motion to table the matter until the March 7 meeting approved by Roll Call Vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).
- **00:20:00 Highway Department Material Bids**
 - **Sponsor / Presenter:** Highway Department / John.
 - **Deliberation Summary:** Bids were opened for fuel (Petroleum Traders Corporation, AgBest LLC), asphalt (EMB Paving, Asphalt Materials Inc.), and stone/aggregates (IMI Asphalt Mixes).
 - **Action & Vote Disposition:** Motion to take bids under advisement for review by Angie and Tommy at the Highway Department approved by Roll Call Vote (Mr. Henry: Yes, Mr. King: Yes).
- **00:21:59 LPA Consulting Contract: Bridge Inspections**
 - **Sponsor / Presenter:** Denise Moyer.
 - **Deliberation Summary:** Moyer presented a 4-year bridge inspection contract with United Consulting following the INDOT RFP process, totaling \$535,592.20 (80% reimbursable).
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Henry: Yes, Mr. King: Yes, Ms. Reagan: Abstain).
- **00:26:04 Cowan Road Pavement Project Bid**
 - **Sponsor / Presenter:** John / Highway Department.
 - **Deliberation Summary:** Presented a single bid from Brooks Pavement Solutions Inc. (Middletown, IN) for \$423,957.45 for a community crossings pavement project.
 - **Action & Vote Disposition:** Motion to approve the bid pending review by the attorney and engineering office approved by Roll Call Vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).
- **00:27:11 Small Structure Replacement Bids (County Road 500 North)**
 - **Sponsor / Presenter:** Highway Department / John.
 - **Deliberation Summary:** Bids/quotes were opened for small structure replacement (Bridge 269 / County Road 500 North between 725 East and 700 East):
 - Hoosier Pride Excavating (Springport, IN): \$142,950.00
 - 3D Company: \$147,000.00
 - **Action & Vote Disposition:** Motion to award the lowest bid to Hoosier Pride Excavating pending review by the attorney and engineering office approved by Roll Call Vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).

- **00:31:26 Veterans Affairs Grant Application**
 - **Sponsor / Presenter:** Catherine Herbert (standing in for Tommy / Veterans Affairs).
 - **Deliberation Summary:** Submitted a request to apply for a federal grant from the U.S. Department of Labor Veterans' Employment and Training Service. An ordinance to create a designated fund will be drafted once the grant is awarded.
 - **Action & Vote Disposition:** Motion to approve the application request approved by Roll Call Vote (Mr. Henry: Yes, Mr. King: Yes, Ms. Reagan: Yes).
- **00:32:34 Generator Maintenance Contract: W.W. Williams**
 - **Sponsor / Presenter:** Steve Foster.
 - **Deliberation Summary:** Presented maintenance agreements covering generators at all three county buildings (9-1-1, Justice Center, and the highway/maintenance facility).
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Maintenance: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).
- **00:34:21 Ordinance No. 2022-003: Comprehensive Zoning Ordinance Amendments (Solar Farms)**
 - **Sponsor / Presenter:** Marta Moody (Executive Director, Delaware-Muncie Metropolitan Plan Commission).
 - **Deliberation Summary:** Moody presented proposed text amendments to the Delaware County Comprehensive Zoning Ordinance regarding solar farm regulations, following a Plan Commission public hearing. Key adjustments included increasing setbacks to 200 feet from dwellings, adding rigorous hazardous substance containment/testing and emergency planning rules for damaged panels, incorporating wildlife corridors for large animals in wooded areas, enforcing drainage tile repair liabilities post-construction, and changing solar farms from a permitted use to a special use.
 - **Board Deliberation & Action:** Commissioner King noted substantial misinformation surrounding the issue and proposed establishing a one-year moratorium and sending the ordinance to a collaborative stakeholder committee (modeled after the CAFO ordinance process) coordinated via the Plan Commission.
 - **Action & Vote Disposition:**
 - Initial motion on plan commission text amendments: Approved by Roll Call Vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).
 - Motion to extend a one-year moratorium and send the solar ordinance to a stakeholder study committee: **Approved by Roll Call Vote** (Mr. Henry: Yes, Mr. King: Yes, Ms. Reagan: Yes).
- **00:44:29 Payment of Claims**
 - **Sponsor / Presenter:** County Administration.
 - **Deliberation Summary:** Regular claims totaling \$1,437,973.56 and ARP claims totaling \$1,714,757.50, for a grand total of \$3,152,731.06.

- **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. King: Yes, Mr. Henry: Yes, Ms. Reagan: Yes).
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4. Open Public Comment / Citizen Forum

(Focused heavily on industrial solar development, the newly enacted moratorium, property values, community division, and agricultural preservation.)

- **00:45:39 Jim Mock:** Spoke regarding the solar project, noting it has deeply divided the community and neighbors, and defended local farming productivity.
- **00:47:51 Dave (from Gaston):** Raised concerns regarding Invenergy attorney statements on property values, missing visual presentations, and discrepancies regarding projected school revenues from Baker Tilly.
- **00:50:23 Tyler Nickim:** Criticized meeting scheduling times that require working residents to lose wages, questioned the tangible local electricity benefits of utility-scale solar, and pointed out community opposition vs. support.
- **00:43:32 Ryan Glass:** Praised the board for the moratorium, comparing the sudden solar development pressure to an invading force disrupting community freedom.
- **00:26:24 Brittany Mock:** Thanked commissioners for the moratorium, expressed support for participating in the study committee, and advocated for neighborly collaboration.
- **00:57:42 Julia Goodman:** Requested that property value guarantees be instituted in solar regulations to protect non-farming homeowners.
- **01:00:16 Tammy Landis:** Shared negative experiences with wind energy in Tipton County, praised the moratorium, and pointed to local agricultural-tech investments (Corteva) as reasons to protect farmland.
- **01:02:13 Tom Schroeder (Invenergy):** Announced an upcoming open house event at the Cornerstone Arts Center for community members to ask questions.
- **01:03:19 Eric Landis:** Argued that solar installations should be placed on commercial rooftops and parking lots rather than swallowing prime agricultural land and encroaching on residences.
- **01:34:32 John Taylor:** Spoke in favor of solar energy and corporate green initiatives, noting that rigorous siting and community protections are essential.
- **01:09:43 Jim Fedoroff (Attorney):** Representing property owners, thanked the commissioners for the moratorium and the establishment of a study committee to review the 15 citizen-proposed amendments.
- **01:12:37 Ryan Richards:** Discussed community values, faith, and local agricultural heritage in relation to the development pressure.
- **01:15:49 James Warmer:** Thanked the board for the moratorium and emphasized the need for thorough municipal homework on complex projects.

- **01:17:04 Tim Richie:** Spoke in favor of the solar project, arguing that society requires clean energy replacements for retiring coal plants just as it requires modern agricultural farming methods.
- **01:19:33 Dr. Jim Robarzyk:** Criticized the lack of early citizen inclusion, comparing the solar rollout to past industrial proposal disputes, and praised the moratorium.
- **01:23:25 Less Nickem:** Praised the board's pause, urged careful evaluation of developer-funded reports, and highlighted citizen-backed ordinance amendments.
- **01:31:16 Ben Friedel (National Renewable Energy Corp / Hawthorne Solar):** Discussed community outreach efforts in Albany and emphasized the need for clear rules of the road for private sector investment.
- **01:34:54 Wayne Meyer:** Voiced deep concern regarding global warming and the long-term environmental future of younger generations.
- **01:37:36 Jerry Priddy:** Discussed property investments, existing local drainage issues, and the need for accountability and policing of drainage tile protections during solar construction.
- **01:35:54 Kyle Rees (Attorney, Dentons Bingham Greenebaum / Metal Forge Solar):** Noted that Invenergy and Metal Forge take the moratorium and special exception under advisement, and expressed eagerness to participate in the study committee and review economic data.
- **01:44:45 Marcy Bunch (Student):** Thanked the board for the moratorium, emphasized that industrial solar cannot be farmed, and stressed the danger of social media misinformation.
- **01:46:43 Christopher Bilbray:** Applauded the commissioners for enacting the moratorium and creating a balanced stakeholder committee.
- **01:48:48 Additional Public Note:** Marta Moody confirmed that materials submitted by Mr. Cushmay to the Plan Commission will be posted online.

5. Administrative Updates & Adjournment

- **Announcements:** Staff noted the County Council was scheduled to meet immediately following (one hour behind schedule). Marta Moody noted planning materials would be published online.
- **Adjournment Disposition:** Motion to recess/adjourn approved by Roll Call Vote (Mr. Henry: Yes, Ms. Reagan: Yes).

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